SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 103 of 1981 **CNR: SCIN010001031981**

Date of Pronouncement: 23 April, 1985 *Citation: (1985) 2 SCC 556*

CORAM: Hon'ble Y.V. Chandrachud, C.J., D.A. Desai, O. Chinnappa Reddy, E.S. Venkat

Petitioner / Appellant: Mohd. Ahmed Khan

- VERSUS -

Respondent / State: Shah Bano Begum & Others

SUBJECT: FAMILY & MAINTENANCE JURISPRUDENCE **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Section 125 CrPC is truly secular in character and applies to all persons irrespective of the religion professed by the parties. Liability to provide maintenance is not extinguished upon completion of iddat if the divorced wife cannot maintain herself.

STATUTORY PROVISIONS INTERPRETED: Section 125 CrPC, Section 127(3)(b) CrPC

FINAL DISPOSITION: MAINTENANCE ORDER IN FAVOR OF DIVORCED WIFE UPHELD

EXECUTIVE SUMMARY:

Five-judge bench affirmed that Section 125 CrPC is a secular provision applying to all citizens regardless of religion, entitling a divorced Muslim wife unable to maintain herself to maintenance beyond the iddat period.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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